



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

July 6, 2012

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 15661
(FIRST REVISION)

EXPIRATION DATE: July 31, 2012

1. GRANTEE: Pyrotechnique by Grucci (PbG)
Brookhaven, NY
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time one-way transportation in commerce of certain unapproved fireworks from the Port of Norfolk, VA to the Radford Army Ammunition Plant in Dublin, VA when classed as Division 1.1G with prescribed operational controls. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(b) in that Class 1 materials are required to be approved prior to transportation, except as provided herein.

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5. BASIS: This emergency special permit is based on the application of Pyrotechnique by Grucci (PbG) dated July 2, 2012, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Fireworks	1.1G	UN0333	II

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Prescribed packaging is as authorized in the HMR.
- b. OPERATIONAL CONTROLS -
- (1) Transportation is authorized one-time, one-way from the Port of Norfolk, VA to the Radford Army Ammunition Plant in Dublin, VA.
 - (2) Transportation must be between 10:00pm and 5:00am and adhere to posted speed limits at all time.
 - (3) Transportation must be conducted on highways and avoid residential areas as much as possible.
 - (4) The shipment must be escorted by the Virginia Department of State Police.
 - (5) No type of oxidizer, fuel, flammable solid or combustible device or similar item may be transported in the cargo area.
 - (6) PHMSA must be notified when the material is to be picked up and transported so the loading process can be physically observed.
 - (7) The material must be off-loaded in the presence of an Agent of the Department (PHMSA) so that the inventory of approved/unapproved items can be verified.
 - (8) The contract carrier used must hold a valid safety permit from the Federal Motor Carrier Safety Administration.

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- (9) The transport must be accompanied by a person, in addition to the operator of the motor vehicle, who is qualified by training and experience to handle the explosive.
- (10) The cargo must be blocked or braced so that no movement of the boxes shall occur during transport.

c. The contract carrier authorized to transport under this special permit is Landstar Ranger Inc., Jacksonville, FL.

d. The fireworks may not be further transported or sold until the proper approval documentation has been issued.

e. The containers are described as follows:

Container number: **KKFU7345830** total number of packages 1416

Container number: **KKFU7420596** total number of packages 1281

Container number: **KKFU7467398** total number of packages 865

Container number: **MRKU3713190** total number of packages 1193

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each container must be marked "DOT-SP 15661."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials

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incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie

Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LAVALLE